

PR-26-000530 IN THE MATTER OF THE MANOUCH AZAD REVOCABLE TRUST - Respondent Giannelli Law Firm's Notice of Demurrer to Petitioner's Petition to Determine Validity of Trust Amendments; to Compel an Accounting; to Remove Trustees and Appoint Successor Trustee; to Impose Constructive Trust; for Damages for Breach of Fiduciary Duty; for Elder Financial Abuse; and for Other Relief – DROPPED as MOOT.

County: stanislaus

Division: Probate

Department: 22

Hearing date: 2012-04-02

Motion: On June 30, 2026, Moving Party Gianelli Law Firm (legally doing business as Gianelli, Friedman, Jeffries & McKernan) filed this demurrer. On July 13, 2026, Petitioner submitted a request for dismissal of the law firm from the action. The request for dismissal was entered the same day. Consequently, Moving Party's demurrer is MOOT, and the hearing on the demurrer is DROPPED. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23: CV-25-004706 -CID, HILMER DEL vs GENERAL MOTORS LLC

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The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

CV-25-004706 -CID, HILMER DEL vs GENERAL MOTORS LLC - Plaintiff's Motion for Attorneys' Fees and Costs Pursuant to Civil Code Section 1794(D) – CONTINUED, on the Court's own motion, to October 2, 2026 at 8:30 a.m. in Department 23.

The Court notes that counsel herein has substantial experience with these types of matters and is presumably well-acquainted with the law governing the determination of reasonable fees and expenses pursuant to the statute. Nevertheless, these types of fee disputes are commonplace and appear to reflect a default pattern of refusing to compromise in favor of "trying their luck" before the court, thus wasting judicial resources in the hopes of obtaining a ruling favoring their side.

The Court believes that the potential exists for the parties to informally resolve the issues presented herein if genuine efforts to meet and confer as to such issues are undertaken in good faith. Therefore, the hearing is continued, as above, for that purpose, and the parties are ordered to meet and confer in person or by online video conference to discuss the issues herein. The parties are further ordered to submit a Joint Status Statement by September 21, 2026, describing their efforts to meet-and-confer and any resolution or narrowing of the issues they were able to achieve.

The Court strongly encourages the parties to make genuine efforts to informally resolve their differences with due civility to one another. Should counsel for the parties be unable to reach a reasonable compromise of any of the issues presented by the instant motion, the Court may require personal appearances at the time of the continued hearing to further address the issues herein.